POLICY ON SEXUAL HARASSMENT OF EMPLOYEES IN THE EAST INDIA PETROLEUM PVT LTD

1.0 POLICY

1.1 EAST INDIA PETROLEUM PVT LTD, (EIPL) is committed to creating a healthy working environment that enables employees to work without fear of prejudice, gender bias and sexual harassment. The Company also believes that all employees have the right to be treated with dignity. Sexual harassment at the work place or other than work place if involving employees is a grave offence and is, therefore, punishable.

1.2 In compliance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, the Company is constituting a Complaint Redressal Committee and also instituting this policy.

2.0 SCOPE AND EFFECTIVE DATE

2.1 This Policy extends to all employees of the Company and comes into effect immediately.

2.2 Sexual harassment would mean and include any of the following:

i) Unwelcome sexual advances, requests or demand for sexual favours, either explicitly or implicitly, in return for employment, promotion, examination or evaluation of a person towards any company activity;

ii) unwelcome sexual advances involving verbal, non-verbal, or physical conduct such as sexually coloured remarks, jokes, letters, phone calls, e-mail, gestures, showing of pornography, lurid stares, physical contact or molestation, stalking, sounds, display of pictures, signs, verbal or non-verbal communication which offends the individuals sensibilities and affect her/his performance;

iii) Eve teasing, innuendos and taunts, physical confinement against one's will and likely to intrude upon one's privacy;

iv) Act or conduct by a person in authority which creates the environment at workplace hostile or intimidating to a person belonging to the other sex;

v) Conduct of such an act at work place or outside in relation to an Employee of EIPL, or vice versa during the course of employment; and

vi) Any unwelcome gesture by an employee having sexual overtones

2.3 "Employee" means any person on the rolls of the Company and for the limited purposes of this policy shall also include those on deputation, contract, temporary, trainees, part time or working as consultants.

3.0 COMPLAINT REDRESSAL COMMITTEE

3.1 A Committee has been constituted by the Management to consider and redress complaints of Sexual Harassment. The Chairman and Members of the Committee are as follows:

Committee

1. Mrs. S Jayalakshmi, Chairperson

2. Ms. Vinesha Naveena Prasad, Member

3. Mr. TV Harish Kumar, Member

4. Mr. Rajesh Maralla, External Member – Advocate

3.2 A quorum of 3 members is required to be present for the proceedings to take place. The quorum shall include the Chairperson, at least two members, one of whom shall be a lady.

4.0 REDRESSAL PROCESS

4.1 Any employee who feels and is being sexually harassed directly or indirectly may submit a complaint of the alleged incident or incidents to any member of the Committee in writing with his/her signature within 10 days of occurrence of incident.

4.2 The Committee will maintain a register to endorse the complaint received by it and keep the contents confidential, if it is so desired, except to use the same for discreet investigation.

4.3 The Committee will hold a meeting with the Complainant within five days of the receipt of the complaint, but no later than a week in any case.

4.4 At the first meeting, the Committee members shall hear the Complainant and record her/his allegations. The Complainant can also submit any corroborative material with a documentary proof, oral or written material, etc., to substantiate his / her complaint. If the Complainant does not wish to depose personally due to embarrassment of narration of event to the entire committee, one of the two women members of the committee shall meet with the Complainant to record her statement.

4.5 Thereafter, the person against whom complaint is made may be called for a deposition before the Committee and an opportunity will be given to him / her to give an explanation, where after, an "Enquiry" shall be conducted and concluded.

4.6 In the event, the complaint does not fall under the purview of Sexual Harassment or the complaint does not mean an offence of Sexual Harassment, the same would be dropped after recording the reasons thereof.

4.7 In case the complaint is found to be false, the Complainant shall, if deemed fit, be liable for appropriate disciplinary action by the Management.

5.0 ENQUIRY PROCESS

5.1 The Committee shall immediately proceed with the Enquiry and communicate the same to the Complainant and person against whom complaint is made.

5.2 The Committee shall prepare and hand over the Statement of Allegation to the person against whom complaint is made and give him / her an opportunity to submit a written explanation if she / he so desires within 7 days of receipt of the same.

5.3 The Complainant shall be provided with a copy of the written explanation submitted by the person against whom complaint is made.

5.4 If the Complainant or the person against whom complaint is made desires any witness/es to be called, they shall communicate in writing to the Committee the names of witness/es whom they propose to call.

5.5 If the Complainant desires to tender any documents by way of evidence before the Committee, she / he shall supply original copies of such documents. Similarly, if the person against whom complaint is made desires to tender any documents in evidence before the Committee he / she shall supply original copies of such documents. Both shall affix his / her signature on the respective documents to certify these to be original copies.

5.6 The Committee shall call upon all witnesses mentioned by both the parties.

5.7 The Committee shall provide every reasonable opportunity to the Complainant and to the person against whom complaint is made, for putting forward and defending their respective case.

5.8 The Committee shall complete the "Enquiry" within reasonable period but not beyond three months and communicate its findings and its recommendations for action to the Managing Director. The report of the committee shall be treated as an enquiry report on the basis of which an erring employee can be awarded appropriate punishment straightaway.

5.9 TheManaging Director shall direct appropriate action in accordance with the recommendation proposed by the Committee.

5.10 The Committee shall be governed by such rules as may be framed by the Supreme Court orders or any other legislation enacted later on.

6.0 OTHER POINTS TO BE CONSIDERED

6.1 The Committee may recommend to the Managing Director action, which may include transfer or any of the other appropriate disciplinary action.

6.2 The management shall provide all necessary assistance for the purpose of ensuring full, effective and speedy implementation of this policy.

6.3 Where sexual harassment occurs as a result of an act or omission by any third party or outsider, the management shall take all steps necessary and reasonable to assist the affected person in terms of support and preventive action.

6.4 The Committee shall analyse and put up report on all complaints, if any, of this nature at the end of the year for submission to management.

6.5 In case the Committee find the degree of offence coverable under the Indian Penal Code, then this fact shall be mentioned in its report and appropriate action shall be initiated by the Management, for making a Police Complaint.

Issued on 10th December 2013.

Managing Director

K Sharath Choudary

1. Original to office file
2. CC to GM – VT and GM- Comm for notifying all employees at Visakhapatnam and Hyderabad respectively.

Members Consent		
Sl.	Name	Signature
1.	Mrs. S Jayalakshmi, Chairperson	S. Jaya Lakshmi
2.	Ms. Vinesha Naveena Prasad, Member	
3.	Mr. TV Harish Kumar, Member	
4.	Mr. Rajesh Maralla, External Member – Advocate	